

MASTER COMMERCIAL SUPPLY AND PURCHASE AGREEMENT

This Master Commercial Supply and Purchase Agreement is entered into on this 9th day of June, 2026, by and between the parties executed herein below. The manufacturing corporation, hereinafter referred to as the **Supplier**, and the purchasing conglomerate, hereinafter referred to as the **Buyer**, collectively referred to as the Parties and individually as a Party.

WHEREAS, the Supplier is engaged in the design, development, fabrication, and assembly of advanced solid-state hardware, specialized integrated circuits, and multi-layered semiconductor architectures, maintaining proprietary facilities and technical infrastructure optimized for high-volume high-yield manufacturing pipelines; and

WHEREAS, the Buyer desires to retain the Supplier for the volume procurement of such technical assemblies, custom chipsets, and peripheral hardware configurations for structural integration into the Buyer's global consumer hardware portfolios, enterprise telecommunication systems, and commercial electronics lines; and

WHEREAS, the Supplier is willing to manufacture, test, package, and supply such specified items to the Buyer in strict accordance with the terms, operational parameters, and financial schedules set forth continuously throughout this instrument.

NOW, THEREFORE, in consideration of the mutual covenants, representations, warranties, and financial obligations contained herein, the sufficiency of which is hereby explicitly acknowledged, the Parties agree to the following structural terms.

Section 1. Definitions and Rules of Construction. For all purposes of this Agreement, except as otherwise expressly provided or unless the context otherwise explicitly requires, the following terms shall possess the structural definitions allocated to them herein. The term "Specifications" shall denote the definitive technical blueprints, operational constraints, thermal tolerances, voltage parameters, physical dimensions, material compositions, and performance benchmarks detailed in the baseline engineering documents attached hereto as Addendum A, which are incorporated into the body of this text by reference as if fully set forth. The term "Products" shall mean the specific semiconductor configurations, integrated circuits, microcontrollers, and related physical hardware modules manufactured by the Supplier under the design parameters mandated by the Specifications. The term "Effective Date" shall mean the calendar date first written above, signaling the formal initialization of all binding performance metrics. The term "Purchase Order" shall mean any formal written or electronic procurement document issued by the Buyer to the Supplier authorizing the fabrication and shipment of specific unit quantities of the Products. The term "Delivery Date" shall

mean the specific calendar date by which a designated shipment of Products must arrive at the designated point of entry specified within an active Purchase Order. The term "Intellectual Property Rights" shall mean all global patent rights, copyrights, trade secrets, trademarks, mask work registrations, industrial design rights, and utility models, whether registered or unregistered, including all applications for the same and all rights to apply for protection under any applicable jurisdiction.

Section 2. Scope of Supply and Order Allocation Infrastructure. The Supplier hereby grants the Buyer the non-exclusive right to purchase the Products in high-volume allocations, and the Supplier commits to reserving adequate cleanroom capacity, raw silicon wafers, substrate materials, and assembly line throughput to satisfy the rolling forecasts provided by the Buyer. The relationship governed by this document is non-exclusive, meaning the Supplier retains the unrestricted right to design, manufacture, market, and sell similar or identical semiconductor components to alternative third-party entities, provided that such manufacturing pipelines do not infringe upon the proprietary designs or utilize the strict confidential information belonging to the Buyer. Within the first five business days of each operational calendar quarter, the Buyer shall transmit to the Supplier a non-binding rolling twelve-month procurement forecast detailing the projected unit volume requirements for the subsequent four quarters. The first three months of any such rolling forecast shall be deemed a "Firm Commitment Window," wherein the Buyer is legally obligated to issue Purchase Orders matching at least eighty-five percent of the stated volume, and the Supplier is legally obligated to maintain raw material inventory sufficient to execute one hundred percent of the stated volume. For the remaining nine months of the forecast window, the metrics remain planning estimates only, designed to guide global supply chain logistics, substrate procurement, and foundry scheduling.

Section 3. Purchase Order Mechanics and Lead Time Management. All procurement under this Agreement must be initiated through the issuance of a formal Purchase Order by the Buyer. Each Purchase Order must clearly delineate the specific product identification codes, the exact unit quantities ordered, the requested delivery dates, the chosen freight forwarder, and the designated destination dock. The Supplier shall evaluate each incoming Purchase Order against current foundry capacity and shall issue a formal written confirmation or rejection within forty-eight hours of receipt. A Purchase Order shall only be deemed accepted and binding upon the issuance of the Supplier's written confirmation. The baseline lead time required for standard volume production runs is established at exactly ninety calendar days from the date of Purchase Order confirmation to the date of initial factory dispatch. Any request by the Buyer to expedite a delivery window below the ninety-day threshold shall be subject to an expedited foundry fee amounting to twenty-five percent of the base unit price for all affected volumes, conditional upon the Supplier's manual verification that safety and quality compliance protocols can be maintained during the accelerated manufacturing run.

Section 4. Commercial Pricing Structure, Invoicing Protocol, and Currency Risk. The baseline pricing for all Products supplied under this agreement is fixed according to the high-volume matrix set forth in the operational pricing tables, denominated exclusively in lawful currency. Prices

are calculated on an Ex-Works basis from the Supplier's principal manufacturing facilities, meaning the stated unit cost excludes all freight expenses, customs duties, import tariffs, value-added taxes, regional assessments, and specialized transit insurance, all of which shall be borne solely by the Buyer. The Supplier shall generate a comprehensive electronic commercial invoice immediately upon the dispatch of any confirmed shipment from the loading bay. Each invoice must explicitly cross-reference the corresponding Purchase Order number, total unit counts, lot numbers, and total aggregate fees due. In the event that international supply chain disruptions cause the baseline cost of raw silicon substrate or specialty gases to increase by more than twelve percent over any continuous sixty-day period, the Supplier reserves the structural right to initiate a mandatory price adjustment negotiation by providing thirty days written notice to the Buyer, during which time the Parties must negotiate a revised pricing matrix in good faith based on verified market cost data.

Section 5. Payment Terms, Latency Restrictions, and Statutory MSME Compliance. The Buyer shall settle all verified, non-disputed invoices within a strict window of ninety calendar days from the date of initial invoice receipt. All payments must be executed via electronic funds transfer or direct wire transmission into the corporate banking repository designated by the Supplier. Any invoice remaining unpaid past the ninety-day threshold shall automatically accumulate late interest penalties calculated at a rate of one and one-half percent per month, compounding continuously until the full outstanding balance is cleared. Notwithstanding the foregoing ninety-day payment structure, the Parties explicitly acknowledge that if the Supplier is formally registered as a Micro, Small, or Medium Enterprise under regional statutory frameworks, including the Indian Micro, Small and Medium Enterprises Development Act, then any contractual payment window exceeding forty-five days from the formal date of product acceptance is legally invalid. In such specific statutory circumstances, the Buyer is strictly obligated by law to settle all undisputed invoices within forty-five days of physical delivery, and any failure to do so will automatically trigger statutory interest penalties set at three times the bank rate notified by the central banking authority, which interest cannot be claimed as a tax-deductible expense by the Buyer.

Section 6. Shipping, Risk Allocation, and Customs Clearance Logistics. All shipping arrangements shall be executed under the strict guidance of Incoterms 2020 rules, configured explicitly as Ex-Works at the Supplier's designated domestic logistics center. Title to the Products and all associated risk of physical loss, degradation, contamination, or destruction shall pass completely to the Buyer at the exact moment the carrier secures the crates onto the transit vehicle at the Supplier's loading dock. The Buyer is entirely responsible for retaining a certified freight forwarder, booking shipping containers, securing cargo insurance, and managing all international customs clearances, import declarations, and harbor handling protocols. If the Buyer's carrier fails to collect a confirmed shipment within seven calendar days of receiving a formal notice of readiness from the Supplier, the Supplier shall store the shipment at the Buyer's sole risk, charging a continuous daily warehouse storage fee equal to one-tenth of a percent of the total invoice value of the delayed cargo.

Section 7. Quality Assurance Protocols and Incoming Inspection Frameworks. The Supplier matches all manufacturing operations to rigorous internal quality management systems and advanced automated optical inspection standards. Upon the physical arrival of a Product shipment at the Buyer's central processing facility, the Buyer shall possess a window of exactly fifteen business days to conduct standard incoming inspection tests, functional validation, and counting verification. This window constitutes the "Inspection Window." If the Buyer identifies any units that fail to conform to the precise performance parameters set forth in the Specifications, or identifies shortfalls in total unit counts, the Buyer must issue a formal written Defect Notice within the Inspection Window. This notice must contain comprehensive diagnostic logs, failure analysis data, photographs of packaging degradation, and lot tracking numbers. Any shipment that does not receive a formal Defect Notice before the expiration of the fifteen-day Inspection Window shall be deemed completely, irrevocably, and unconditionally accepted by the Buyer, and all rights to reject the goods for patent defects or counting errors shall terminate.

Section 8. Warranty Protections, RMA Management, and Remedial Exclusions. The Supplier warrants to the Buyer that for a continuous period of twelve months from the date of physical delivery, all Products shall remain completely free from material defects in workmanship and fabrication, and shall operate in substantial alignment with the technical parameters outlined in the Specifications. This warranty applies exclusively to Products that have been handled, stored, soldered, integrated, and operated in strict accordance with the thermal, moisture, and electrical guidelines provided by the Supplier. The warranty is completely voided if a Product suffers from electrical overstress, physical impact, unauthorized reverse engineering, chemical exposure, or improper systemic integration. To invoke this warranty, the Buyer must secure a Return Merchandise Authorization number from the Supplier prior to shipping any defective units back to the lab. The Supplier's sole and exclusive liability under this warranty, and the Buyer's sole remedy, is strictly limited to either the physical repair of the non-conforming units, the fabrication of drop-in replacement components, or the issuance of a commercial credit note matching the original invoice cost of the validated defective units.

Section 9. Intellectual Property Ownership and Mask Work Protections. Except as explicitly stated herein, neither Party transfers any underlying intellectual property ownership to the other through this commercial relationship. All foundational designs, manufacturing processes, chemical etching methodologies, software drivers, microcode, firmware, and mask works owned or developed by the Supplier prior to or independent of this Agreement remain the sole, exclusive, and unencumbered property of the Supplier. Any custom design modifications, architectural tweaks, or performance optimizations performed on the Products by the Supplier during the execution of this contract, even if prompted by feedback or design requests originating from the Buyer, shall vest entirely and automatically in the Supplier. The Buyer is strictly prohibited from reverse engineering, decompiling, disassembling, or cross-sectioning any Product units to map the internal physical

architecture, and shall not attempt to replicate the silicon layout or manufacture derivative variations of the hardware through alternative foundry services.

Section 10. Intellectual Property Infringement and Defense Allocations. The Supplier shall defend, indemnify, and hold the Buyer harmless from and against any final judgments, court-ordered damages, or reasonable settlement costs arising directly from third-party lawsuits alleging that the unmodified, standalone Products manufactured by the Supplier infringe upon a valid, enforceable global patent or copyright. This indemnity obligation is strictly contingent upon the Buyer providing immediate written notice of the claim to the Supplier, granting the Supplier absolute and exclusive control over the legal defense, strategy, selection of counsel, and all settlement negotiations, and fully cooperating with the Supplier throughout the litigation process. This indemnity does not apply if the alleged infringement arises from the Supplier's strict compliance with unique, custom designs or blueprints provided directly by the Buyer, or if the infringement occurs because the Buyer combined the semiconductor Product with alternative software, external circuits, or peripheral devices not authorized or supplied by the Supplier.

Section 11. Confidentiality Injunctions and Trade Secret Protections. Throughout the term of this commercial relationship and for a continuous period of five years following its termination, each Party shall maintain the strictest confidentiality regarding all non-public information received from the other Party that is marked as proprietary or confidential, or which by its operational nature should reasonably be understood to be a corporate secret. Confidential Information includes, without limitation, raw silicon pricing matrices, cleanroom yield rates, yield optimization strategies, future product roadmaps, software source code, customer lists, and the precise financial terms of this instrument. The receiving Party shall restrict access to such data strictly to employees, technical contractors, and legal advisors who possess a definitive "need to know" and who are bound by non-disclosure agreements at least as restrictive as this section. This obligation does not apply to data that enters the public domain through no fault of the receiving Party, data already in the possession of the receiving Party prior to disclosure, or data required to be disclosed by a valid order of a court of competent jurisdiction.

Section 12. Indemnification Frameworks and Operational Liability Allocations. The Buyer shall defend, indemnify, and hold harmless the Supplier, its subsidiary foundries, corporate directors, officers, and fabrication engineers from and against any and all liabilities, losses, administrative fines, lawsuits, and defense costs arising from third-party product liability claims alleging that a consumer electronic device designed, marketed, or sold by the Buyer caused property damage, personal injury, or death, regardless of whether such claims allege that a semiconductor component supplied by the Supplier was a contributing factor. The Buyer assumes full system-level integration liability, acknowledging that semiconductor components are highly sensitive elements whose ultimate operational safety depends entirely on the enclosing hardware architecture, thermal management

subsystems, voltage regulation safeguards, and software exception-handling layers engineered completely by the Buyer.

Section 13. Limitation of Liability and Cap on Financial Exposures. Notwithstanding any provision contained within this instrument to the contrary, neither Party shall under any circumstances be liable to the other for any indirect, incidental, special, exemplary, punitive, or consequential damages arising out of or in connection with this agreement. Consequential damages include, but are not limited to, loss of anticipated revenue, loss of commercial profit, loss of corporate goodwill, cost of procurement for substitute substitute components, system downtime, production line stoppages, or customer product recall expenses, regardless of whether such damages were foreseeable or whether a Party was advised of the possibility of such losses. Furthermore, the maximum aggregate financial liability of the Supplier under this Agreement for all combined breaches of contract, warranty claims, tort liabilities, or indemnification duties shall be strictly capped at and shall not exceed the total cumulative dollar amount actually paid by the Buyer to the Supplier for the specific lot of Products giving rise to the underlying claim during the immediate three-month window preceding the assertion of the legal claim.

Section 14. Term, Continuation, and Structural Termination Mechanics. This Agreement shall officially commence upon the Effective Date and shall persist in full force for an initial term of three consecutive years, unless terminated earlier in strict accordance with the provisions detailed within this section. Upon the expiration of the initial three-year term, this contract shall automatically renew for successive one-year intervals, unless either Party transmits a formal written notice of non-renewal to the other Party at least ninety calendar days prior to the expiration of the current term. Either Party may terminate this Agreement with immediate effect by providing written notice if the other Party files a voluntary petition for bankruptcy, enters liquidation, assigns its assets to a receiver, or faces an involuntary bankruptcy proceeding that is not dismissed within sixty days. Either Party may also terminate this agreement if the other Party commits a material breach of any term contained herein and fails to completely cure such breach within thirty calendar days of receiving a detailed, written Default Notice outlining the precise nature of the failure.

Section 15. Consequences of Termination and Order Wind-Down Protocols. Upon the formal termination or expiration of this Agreement for any reason, all outstanding Purchase Orders confirmed prior to the date of termination notice shall be executed to completion, and the Buyer shall remain fully obligated to accept delivery and pay for all such completed units. The Supplier shall stop all raw material wafer procurement and custom foundry runs linked to the non-binding portion of the rolling forecasts. Within fifteen business days of the final contract wrap-up, each Party shall return to the other or certify the complete destruction of all physical copies and digital repositories containing Confidential Information obtained during the execution of this contract. All provisions which by their fundamental legal nature are intended to survive the expiration or termination of a commercial contract shall persist indefinitely, including Section 1 (Definitions), Section 5 (Payment Penalties),

Section 9 (IP Ownership), Section 11 (Confidentiality), Section 13 (Limitation of Liability), and Section 16 (Governing Law).

Section 16. Governing Law, Jurisdictional Mandates, and Dispute Resolution. This Agreement, including its formation, execution, performance, interpretation, and any non-contractual disputes arising from the commercial relationship, shall be governed exclusively by and construed in strict accordance with the substantive laws of the designated jurisdiction, completely excluding its conflict of laws principles and explicitly disclaiming the applicability of the United Nations Convention on Contracts for the International Sale of Goods. Any dispute, controversy, or legal claim arising out of or relating to this contract, including its validity or breach, shall first be subjected to mandatory executive-level mediation, wherein senior corporate officers from each Party shall meet in person at a neutral location to attempt a good-faith resolution. If the executive mediation fails to produce a binding settlement within thirty calendar days of initialization, the dispute shall be referred to and finally resolved by binding arbitration administered by the regional international arbitration association in accordance with its commercial arbitration rules. The arbitration panel shall consist of three neutral arbitrators possesses specialized experience in high-technology manufacturing disputes. The language of the arbitration shall be English, and the final written award generated by the panel shall be absolute, non-appealable, and capable of enforcement in any court possessing competent jurisdiction over the losing Party.

Section 17. Force Majeure and Excused Performance Interruptions. Neither Party shall be held liable or deemed in default for any delay or failure in performance resulting directly from events beyond their reasonable control and without their direct fault or negligence, which events constitute a "Force Majeure Event." Force Majeure Events include, without limitation, acts of God, sudden volcanic eruptions, regional earthquakes, category-five hurricanes, severe floods, solar storms disrupting regional electrical grids, declarations of war, nationwide military mobilizations, industrial strikes, civil blockades, government export embargos, sudden semiconductor material global blockades, pan-continental pandemics, or severe foundry blackouts caused by utility infrastructure failure. Upon the occurrence of a Force Majeure Event, the affected Party must provide written notice to the other Party within forty-eight hours, detailing the nature of the event and projecting the estimated operational delay. Performance obligations shall be suspended strictly for the duration of the Force Majeure Event; provided, however, that if the performance suspension persists continuously for a period exceeding ninety consecutive days, either Party may terminate the unexecuted portions of the agreement immediately upon written notice without incurring any termination penalties.

Section 18. Miscellaneous Frameworks, Severability, and Entire Agreement. This instrument, along with its verified technical addenda, represents the entire and exclusive agreement between the Parties regarding the high-volume procurement of the Products, and completely supersedes all prior or contemporaneous discussions, letters of intent, memorandums of understanding, oral agreements, or preliminary vendor applications exchanged between the corporate

entities. No modification, amendment, waiver, or alteration of any provision contained within this document shall be legally valid or binding unless it is drafted explicitly in writing and signed by an authorized executive representative of both Parties. If any section, clause, sentence, or parameter of this Agreement is held by an arbitration panel or a court of competent jurisdiction to be legally invalid, void, or unenforceable under current statutory frameworks, the remaining provisions of this instrument shall continue in full force and effect without being impaired or invalidated in any manner, and the Parties shall negotiate in good faith to replace the invalid clause with a valid provision that matches the original commercial intent as closely as possible. No failure or delay by either Party in exercising any structural right or power under this agreement shall operate as a waiver of that right, nor shall any single exercise of a right preclude further execution of the same or any other legal remedy available. All formal notices required under this agreement must be transmitted in writing via certified international courier with tracking capability to the principal corporate headquarters executed below.

For and on behalf of the Supplier:

Signature

Name

Title

Date

For and on behalf of the Buyer:

Signature

Name

Title

Date